



CHAPTER cxlvii.

An Act to confirm certain Provisional Orders of the A.D. 1911.
Local Government Board relating to the district of the
Accrington District Gas and Water Board the Middlesex
Districts Joint Small-pox Hospital District the South
Staffordshire Joint Small-pox Hospital District and the
Swansea Rural District. [18th August 1911.]

WHEREAS the Local Government Board have made the
Provisional Orders set forth in the schedule hereto under
the provisions of the Public Health Act 1875 :

38 & 39 Vict.
c. 55.

And whereas it is requisite that the said Orders should be
confirmed by Parliament :

Be it therefore enacted by the King's most Excellent Majesty
by and with the advice and consent of the Lords Spiritual and
Temporal and Commons in this present Parliament assembled
and by the authority of the same as follows :—

1. The Orders set out in the schedule hereto shall be and
the same are hereby confirmed and all the provisions thereof
shall have full validity and force. Orders in
schedule
confirmed.

2. This Act may be cited as the Local Government Board's Short title.
Provisional Orders Confirmation (No. 9) Act 1911.

A.D. 1911.

SCHEDULE.

DISTRICT OF THE ACCRINGTON DISTRICT GAS AND
WATER BOARD.

*Accrington
District
Order.*

*Provisional Order for altering the Accrington District Gas and
Water Board Act 1894 the Accrington District Gas and
Water Board Act 1905 and the Accrington District
Gas and Water Board Act 1906.*

To the Accrington District Gas and Water Board;—

To the Mayor Aldermen and Burgesses of the Borough of
Accrington;—

To the Urban District Council of Church;—

To the Urban District Council of Clayton-le-Moors;—

To the Urban District Council of Great Harwood;—

To the Urban District Council of Rishton;—

And to all others whom it may concern.

38 & 39 Vict.
c. 55.

WHEREAS the Mayor Aldermen and Burgesses of the Borough of
Accrington acting by the Council (herein-after referred to as "the
Corporation") and the Urban District Councils of Church Clayton-le-
Moors Great Harwood and Rishton (herein-after together referred to as
"the District Councils") are the local authorities within the meaning
of the Public Health Act 1875 for the Borough of Accrington and
the Urban Districts of Church Clayton-le-Moors Great Harwood and
Rishton respectively;

57 & 58 Vict.
c. cxxxiv.

And whereas the Accrington District Gas and Water Board Act
1894 constituted a Joint Board consisting of members elected by the
Corporation and the predecessors of the District Councils and entitled
the Accrington District Gas and Water Board (herein-after referred to
as "the Joint Board") for the purpose of carrying the said Act into
execution;

[1 & 2 GEO. 5.] *Local Government Board's* [Ch. cxlvii.]
Provisional Orders Confirmation (No. 9) Act, 1911.

And whereas by the said Act and by the Accrington District Gas and Water Board Act 1905 and the Accrington District Gas and Water Board Act 1906 (each of which Acts is herein-after referred to as the Act of the year in which it was passed and which Acts are herein-after together referred to as "the Local Acts") and by a Provisional Order duly confirmed by Parliament which does not affect the subject-matter of this Order certain powers as therein set forth were conferred upon the Joint Board for gas and water purposes;

A.D. 1911.
Accrington District Order.
 5 Edw. 7.
 c. xl.
 6 Edw. 7.
 c. xvii.

And whereas the limits of the Act of 1894 for the supply of gas and water (herein-after referred to as "the original limits of supply") were defined by Section 4 of that Act and by Section 5 of the Act of 1905 those limits as so defined were extended so as to include the whole of the Township and Parish of Altham in the County Palatine of Lancaster (which limits as so extended are herein-after referred to as "the extended limits of supply");

And whereas by Section 20 of the Act of 1905 the Joint Board were empowered to borrow for the purposes of their water undertaking to which capital is properly applicable the further sum therein mentioned for the works by that Act authorised and any further sum sanctioned by the Local Government Board;

And whereas by Section 3 of the Act of 1906 the Joint Board were authorised subject to the provisions of that Act to make and maintain a line or lines of pipes in the lines and situations and according to the levels shown on a plan and section therein referred to as the deposited plan and section and by Section 4 of the Act of 1906 the Joint Board were subject as therein provided further empowered in constructing the works authorised by that Act to deviate from the lines and levels shown on the deposited plan and section to the extent therein mentioned;

And whereas the Joint Board have constructed the line or lines of pipes described in Section 3 of the Act of 1906 but have constructed the same in part beyond the limits of deviation prescribed by that Act;

And whereas by Section 19 of the Act of 1906 the Joint Board were empowered to borrow the sum of Twenty-six thousand six hundred and thirty pounds for the purchase of land and for the execution of the works authorised by that Act and the Joint Board have incurred expenditure in excess of the said sum in connection with the purchase of the land and the execution of the works aforesaid including the construction of the said line or lines of pipes;

And whereas the Corporation and the District Councils have made application to the Local Government Board for the issue of a Provisional

[Ch. cxlvii.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation (No. 9) Act, 1911.

A.D. 1911. Order to repeal alter or amend the Local Acts in the manner hereinafter set forth :

*Accrington
District
Order.*

38 & 39 Vict.
c. 55.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Acts shall be altered so that the following provisions shall take effect that is to say :—

*Authorisa-
tion of works
constructed
by Joint
Board.*

Art. I. The line or lines of pipes constructed by the Joint Board as aforesaid though in part beyond the limits of deviation prescribed by the Act of 1906 shall be deemed to have been constructed by the Joint Board in the exercise of their powers under the Act of 1906.

*Borrowing
powers of
Act of 1905
made avail-
able.*

Art. II. The powers of borrowing money with the sanction of the Local Government Board conferred by Section 20 of the Act of 1905 shall be available to the Joint Board for the purpose of defraying expenditure on the construction of the works mentioned in Article I. of this Order incurred by the Joint Board in excess of the sum of Twenty-six thousand six hundred and thirty pounds authorised to be borrowed as aforesaid by the Act of 1906.

*Application
of Section
303 of Public
Health Act
1875.*

Art. III. Section 303 of the Public Health Act 1875 shall extend and apply to and the powers thereof may be exercised by the Joint Board as if the Joint Board were a local authority within the meaning of that Section and as if the extended limits of supply were the district of the local authority.

*Application
of Local Acts
to extended
limits of
supply.*

Art. IV. The provisions of the Local Acts with respect to the supply of gas and water and otherwise with respect to gas and water purposes which now apply and have effect within the original limits of supply shall with the necessary modifications apply and have effect within the extended limits of supply.

Short title.

Art. V. This Order may be cited as the Accrington District Gas and Water Board Order 1911.

Given under the Seal of Office of the Local Government Board
this Twenty-fourth day of May One thousand nine hundred
and eleven.

(L.S.)

JOHN BURNS President.
H. C. MONRO Secretary.

MIDDLESEX DISTRICTS JOINT SMALL-POX
HOSPITAL DISTRICT.

A.D. 1911.

Provisional Order for altering certain Confirming Acts.

*Middlesex
Districts
Small-pox
Hospital
Order.*

To the Middlesex Districts Joint Small-Pox Hospital Board;—

To the County Council of Middlesex;—

To the Urban District Council of each of the Urban Districts of
Acton Brentford Chiswick Edmonton Enfield Feltham Friern
Barnet Greenford Hampton Wick Hanwell Harrow-on-the-Hill
Southgate Staines Tottenham Wealdstone and Wood Green;—

And to all others whom it may concern.

WHEREAS by virtue of the Middlesex Districts Joint Small-Pox Hospital Orders 1905 to 1910 which were respectively confirmed by the Local Government Board's Provisional Orders Confirmation (No. 14) Act 1905 the Local Government Board's Provisional Orders Confirmation (No. 6) Act 1908 and the Local Government Board's Provisional Orders Confirmation (No. 3) Act 1910 (each of which Orders is herein-after referred to as the Order of the year in which it was made and all which Orders and Confirming Acts are herein-after referred to respectively as "the Orders" and "the Confirming Acts") the Urban Districts of Acton Brentford Chiswick Edmonton Enfield Feltham Friern Barnet Greenford Hampton Wick Hanwell Harrow-on-the-Hill Southgate Staines Tottenham Wealdstone and Wood Green constitute the United District called the Middlesex Districts Joint Small-Pox Hospital District (herein-after referred to as "the United District") of which the governing body is the Middlesex Districts Joint Small-Pox Hospital Board (herein-after referred to as "the Joint Board") consisting of an ex-officio member and of elected members chosen by the District Councils of the said Urban Districts (each of which Councils is herein-after referred to as a "Constituent Authority");

5 Edw. 7.
c. cix. .
8 Edw. 7.
c. cxlvi.
10 Edw. 7 &
1 Geo. 5.
c. lxxx.

And whereas by the Order of 1905 the purposes for which the United District was formed are expressed to be the provision maintenance and management for the use of the inhabitants of the United District of a hospital or hospitals for the reception of cases of small-pox;

And whereas it is expedient to make further provision with respect to the use of the hospital or hospitals provided as aforesaid and that the Orders should be altered as herein-after provided:

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 297 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order

38 & 39 Vict.
c. 55.

[Ch. cxlvii.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation (No. 9) Act, 1911.

A.D. 1911. the Confirming Acts so far as they relate to the Orders shall be altered as follows:—

*Middlesex
 Districts
 Small-pox
 Hospital
 Order.*
 Admission
 into hospital
 of Joint
 Board of
 cases of
 pulmonary
 tuberculosis.

Art. I.—(1) Notwithstanding anything in the Orders the Joint Board may from time to time whenever a hospital provided by the Joint Board in pursuance of the Orders is not required for the reception and treatment of cases of small-pox admit into the hospital on the order of a Constituent Authority or of a Medical Officer of Health of a Constituent Authority who has been authorised in that behalf by that Constituent Authority cases of pulmonary tuberculosis occurring amongst the inhabitants of the District of the Constituent Authority.

(2) The admission into a hospital of cases of pulmonary tuberculosis in pursuance of subdivision (1) of this Article shall be subject to the following conditions:—

(A) The arrangements for the reception treatment and discharge of the cases shall subject to the directions of the Joint Board be under the control of the medical officer of the hospital and shall be so framed as to secure that whenever the hospital is required for the reception of cases of small-pox measures shall be immediately taken by the removal from the hospital of all cases of pulmonary tuberculosis and otherwise to render the hospital available for the reception of cases of small-pox:

(B) The Constituent Authority from whose District a case of pulmonary tuberculosis has been received into the hospital shall pay to the Joint Board the sum of five shillings or such other sum as the Joint Board may with the sanction of the Local Government Board determine for every day during which the patient is in the hospital. For the purposes of this paragraph the day on which a patient is received into and the day on which a patient is discharged from a hospital shall each be deemed a day during which the patient is in the hospital:

(C) The amount due from any Constituent Authority to the Joint Board in pursuance of paragraph (B) of this subdivision shall be included in any precept which the Joint Board issue to any Constituent Authority under Section 284 of the Public Health Act 1875 stating the sums to be contributed by the Constituent Authority towards the common fund of the United District and in case of default shall be recovered in like manner as the sums to be contributed towards the said common fund.

(3) The provisions of this Order shall not take away abridge or prejudicially affect any powers vested in any Constituent Authority with

[1 & 2 GEO. 5.] *Local Government Board's* [Ch. cxlvii.]
Provisional Orders Confirmation (No. 9) Act, 1911.

regard to cases of pulmonary tuberculosis other than those which are receiving treatment at a hospital provided by the Joint Board: A.D. 1911.

(4) In relation to any case of pulmonary tuberculosis received into a hospital in pursuance of subdivision (1) of this Article the provisions of Section 132 of the Public Health Act 1875 as modified by Section 60 of the Public Health Acts Amendment Act 1907 shall not apply to the Joint Board but the provisions of those enactments shall apply to the Constituent Authority from whose District the case was received.

*Middlesex
Districts
Small-pox
Hospital
Order.*

Art. II. Except so far as this Order otherwise expressly provides to the contrary the Orders shall in relation to any case of pulmonary tuberculosis received into a hospital provided by the Joint Board apply with such modifications and adaptations as may be necessary to give effect to this Order.

Existing
Orders made
applicable.

Art. III. This Order may be cited as the Middlesex Districts Joint Small-Pox Hospital Order 1911 and the Orders and this Order may be cited together as the Middlesex Districts Joint Small-Pox Hospital Orders 1905 to 1911.

Short titles.

Given under the Seal of Office of the Local Government Board
 this Twenty-fifth day of May One thousand nine hundred
 and eleven.

(L.S.)

JOHN BURNS President.

H. C. MONRO Secretary.

**SOUTH STAFFORDSHIRE JOINT SMALL-POX
 HOSPITAL DISTRICT.**

Provisional Order for altering certain Confirming Acts.

*South
Staffordshire
Order.*

To the South Staffordshire Joint Small-Pox Hospital Board ; —

To the County Council of Stafford ; —

To the County Council of Worcester ; —

To the Mayor Aldermen and Burgesses of the Borough of
 Smethwick ; —

To the Mayor Aldermen and Burgesses of the Borough of
 Wolverhampton ; —

To the Urban District Council of each of the Urban Districts of
 Amblecote Bilston Coseley Darlaston Heath Town Oldbury
 Rowley Regis Sedgley Short Heath Tettenhall Tipton and
 Wednesfield ; —

To the Rural District Council of Kingswinford ; —

And to all others whom it may concern:

WHEREAS by virtue of the South Staffordshire Joint Small-pox Hospital
 Orders 1903 and 1907 which were respectively confirmed by the Local

[Ch. cxlvii.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation (No. 9) Act, 1911.

A.D. 1911. Government Board's Provisional Orders Confirmation (No. 14) Act 1903
South
Staffordshire
Order.
3 Edw. 7.
c. lxxx.
7 Edw. 7.
c. cliv. and the Local Government Board's Provisional Orders Confirmation
(No. 4) Act 1907 (each of which Orders is herein-after referred to as
the Order of the year in which it was made and both of which Orders
and Confirming Acts are herein-after referred to respectively as "the
Orders" and "the Confirming Acts") the County Boroughs of Smeth-
wick and Wolverhampton the Urban Districts of Amblecote Bilston
Coseley Darlaston Heath Town Oldbury Rowley Regis Sedgley Short
Heath Tettenhall Tipton and Wednesfield and the Rural District of
Kingswinford constitute the United District called the South Staffordshire
Joint Small-pox Hospital District (herein-after referred to as "the United
District") of which the governing body is the South Staffordshire Joint
Small-pox Hospital Board (herein-after referred to as "the Joint Board")
consisting of ex-officio members and of elected members chosen by the
Councils of the said County Boroughs and Urban and Rural Districts
(each of which councils is herein-after referred to as a "Constituent
Authority");

And whereas by the Order of 1903 the purposes for which the
United District was formed are expressed to be the provision main-
tenance and management for the use of the inhabitants of the
United District of a hospital or hospitals for the reception of cases of
small-pox;

And whereas it is expedient to make further provision with respect
to the use of the hospital or hospitals provided as aforesaid and that the
Orders should be altered as herein-after provided:

38 & 39 Vict.
c. 55. Now therefore We the Local Government Board in pursuance of
the powers given to Us by Section 297 of the Public Health Act 1875
and by any other Statutes in that behalf do hereby order that from
and after the date of the Act of Parliament confirming this Order
the Confirming Acts so far as they relate to the Orders shall be altered
as follows:—

Admission
into hospital
of Joint
Board of
cases of
pulmonary
tuberculosis. Art. I.—(1) Notwithstanding anything in the Orders the Joint
Board may from time to time whenever a hospital provided by the
Joint Board in pursuance of the Orders is not required for the reception
and treatment of cases of small-pox admit into the hospital on the
order of a Constituent Authority or of a Medical Officer of Health
of a Constituent Authority who has been authorised in that behalf by
that Constituent Authority cases of pulmonary tuberculosis occurring
amongst the inhabitants of the District of such Constituent Authority.

(2) The admission into a hospital of cases of pulmonary tuberculosis
in pursuance of sub-division (1) of this Article shall be subject to the
following conditions:—

[1 & 2 GEO. 5.] *Local Government Board's* [Ch. cxlvii.]
Provisional Orders Confirmation (No. 9) Act, 1911.

(A) The arrangements for the reception treatment and discharge of the cases shall subject to the directions of the Joint Board be under the control of the medical officer of the hospital and shall be so framed as to secure that whenever the hospital is required for the reception of cases of small-pox measures shall be immediately taken by the removal from the hospital of all cases of pulmonary tuberculosis and otherwise to render the hospital available for the reception of cases of small-pox :

A.D. 1911.
—
*South
Staffordshire
Order.*

(B) The Constituent Authority from whose District a case of pulmonary tuberculosis has been received into the hospital shall pay to the Joint Board the sum of five shillings or such other sum as the Joint Board may with the sanction of the Local Government Board determine for every day during which the patient is in the hospital For the purposes of this paragraph the day on which a patient is received into and the day on which a patient is discharged from a hospital shall each be deemed a day during which the patient is in the hospital :

(c) The amount due from any Constituent Authority to the Joint Board in pursuance of paragraph (B) of this subdivision shall be included in any precept which the Joint Board issue to any Constituent Authority under Section 284 of the Public Health Act 1875 stating the sums to be contributed by the Constituent Authority towards the common fund of the United District and in case of default shall be recovered in like manner as the sums to be contributed towards the said common fund.

(3) The provisions of this Order shall not take away abridge or prejudicially affect any powers vested in any Constituent Authority with regard to cases of pulmonary tuberculosis other than those which are receiving treatment at a hospital provided by the Joint Board.

(4) In relation to any case of pulmonary tuberculosis received into a hospital in pursuance of subdivision (1) of this Article the provisions of Section 132 of the Public Health Act 1875 as modified by Section 60 of the Public Health Acts Amendment Act 1907 shall not apply to the Joint Board but the provisions of those enactments shall apply to the Constituent Authority from whose District the case was received.

Art. II. Except so far as this Order otherwise expressly provides to the contrary the Orders shall in relation to any case of pulmonary tuberculosis received into a hospital provided by the Joint Board

Existing
Orders made
applicable.

[Ch. cxlvii.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation (No. 9) Act, 1911.

A.D. 1911.

*South
Staffordshire
Order.*

Short titles.

apply with such modifications and adaptations as may be necessary to give effect to this Order.

Art. III. This Order may be cited as the South Staffordshire Joint Small-Pox Hospital Order 1911 and the Orders and this Order may be cited together as the South Staffordshire Joint Small-Pox Hospital Orders 1903 to 1911.

Given under the Seal of Office of the Local Government Board
 this Twenty-fourth day of May One thousand nine hundred
 and eleven.

(L.S.)

JOHN BURNS President.

H. C. MONRO Secretary.

RURAL DISTRICT OF SWANSEA.

*Swansea
Rural Order.*

*Provisional Order for dissolving the Gower Road Special
 Drainage District.*

To the Rural District Council of Swansea;—

To the Inhabitants of the Parish of Gowerton in the Rural
 District of Swansea;—

And to all others whom it may concern.

WHEREAS the Gower Road Special Drainage District in the Parish
 of Gowerton in the County of Glamorgan is comprised within the
 Rural District of Swansea and certain loans amounting in the whole
 to the sum of three thousand two hundred and forty-eight pounds
 have been raised for the execution of works for the benefit of the said
 Special Drainage District;

And whereas of the above-mentioned amount the sum of One
 thousand seven hundred and forty-three pounds two shillings now
 remains unpaid and the liability for the repayment of the last-
 mentioned amount attaches to the Rural District Council of Swansea:

38 & 39 Vict.
 c. 55.

Now therefore We the Local Government Board in pursuance of
 the powers given to Us by Section 270 of the Public Health Act 1875
 and by any other Statutes in that behalf do hereby order as follows:—

Commence-
 ment of
 Order.

Art. I. This Order shall come into operation on the First day of
 October One thousand nine hundred and eleven.

Dissolution of
 Special Drain-
 age District.

Art. II. The said Special Drainage District shall be dissolved and
 shall be merged in the said Parish of Gowerton.

[1 & 2 GEO. 5.] *Local Government Board's* [Ch. cxlvii.]
Provisional Orders Confirmation (No. 9) Act, 1911.

Art. III. The payments to be made from time to time by the Rural District Council of Swansea— A.D. 1911.

- (A) in respect of the interest on and in repayment of the said sum of One thousand seven hundred and forty-three pounds two shillings or so much thereof as shall be owing on the said First day of October; or
- (B) in respect of the interest on and in repayment of any further sum which before the said First day of October may be borrowed by the said Rural District Council with the sanction of the Local Government Board for the execution of works for the benefit of the said Special Drainage District;

*Swansea
Rural Order.*
Charge-
ability of
outstanding
debt.

shall be charged as special expenses upon the whole of the said Parish of Gowerton.

Art. IV. This Order may be cited as the Swansea Rural Order 1911. Short title

Given under the Seal of Office of the Local Government Board
this Twenty-third day of May One thousand nine hundred
and eleven.

(L.S.)

JOHN BURNS President.

H. C. MONRO Secretary.

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